essential that we should proceed to discharge our duty without fear or favour, affection or ill-will.[12]

That outcome would be shaped by how the court interpreted two significant provisions of the Constitution. The first was Article 194(3), which stated that the powers, privileges and immunities of state legislatures should be defined by law. However, until they were defined by law, they would be the same as those of the House of Commons of the United Kingdom. This was one of many provisions of the Constitution that set out a default position, but allowed that position to be dislodged by ordinary law (rather than a formal amendment to the Constitution). Since no law codifying the privileges of Parliament or the state legislatures had been enacted at the time, the privileges, powers and immunities of the House of Commons would apply.

The interpretation of British cases on parliamentary privilege therefore formed a focal point of the dispute between the assembly and the high court. These cases included one from 1704 in which the House of Commons had deprived four men of the right to vote and committed them to prison;[13] another from 1750 when a prisoner refused to kneel at the bar of the house;[14] and an 1839 case involving a defamation claim against 'Hansard', the publisher of parliamentary debates.[15] The leading textbook on parliamentary privilege in Britain, written by Erskine May, former clerk of the House of Commons (analogous to the chief executive), was cited as an authoritative text by the Supreme Court.[16]

However, the Supreme Court was confronted by an additional complication in India. It was argued on behalf of Singh that parliamentary privileges were being exercised in disregard of his right to personal liberty under Article 21 of the Constitution. It was suggested that in the event of a conflict between the right to personal liberty and parliamentary privileges, the former should prevail. The Supreme Court agreed, noting that while these two constitutional provisions should be construed harmoniously to the extent possible, Article 21 would prevail in the event of an inconsistency.

The second constitutional provision at issue was Article 211. This provision imposed an absolute prohibition on discussion of the conduct of